11. Rule of law
12. Harmony and balance between Funda mental Rights and Directive Principles
13. Principle of equality
14. Free and fair elections
15. Independence of Judiciary
16. Limited power of Parliament to amend the Constitution
17. Effective access to justice
18. Principles (or essence) underlying fundamental rights
19. Powers of the Supreme Court under Articles 32, 136, 141 and 142[6]
20. Powers of the High Courts under Articles 226 and 227[7]

**Table 12.1** Evolution of the Basic Structure of the Constitution

| Sl. No. | Name of the Case (Year) | Elements of the Basic Structure (As Declared by the Supreme Court) |
|---|---|---|
| 1. | Kesavananda Bharati Case[3] (1973) (popularly known as the Fundamental Rights Case) | 1. Supremacy of the Constitution<br>2. Separation of powers between the legislature, the executive and the judiciary<br>3. Republic and democratic form of government<br>4. Secular character of the constitution<br>5. Federal character of the constitution<br>6. Sovereignty and unity of India<br>7. Freedom and dignity of the individual<br>8. Mandate to build a welfare state<br>9. Parliamentary System |
| 2. | Indira Nehru Gandhi Case[3a] (1975) (popularly known as the Election Case) | 1. India as a sovereign democratic republic<br>2. Equality of status and opportunity of an individual |